

STATE OF NEW YORK

7574--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 1, 2025

Introduced by M. of A. BRABENEC -- read once and referred to the Committee on Governmental Employees -- recommitted to the Committee on Governmental Employees in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to authorize Susan Gillinder, the widow of Robert C. Ritchie, to file a new service retirement application and option election form with the New York state and local employees' retirement system on behalf of such deceased member

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Notwithstanding any other provision of law to the contrary,
2 Susan Gillinder, the widow of Robert C. Ritchie, who was a member of the
3 New York state and local employees' retirement system, who died after he
4 filed for retirement but prior to his selected retirement date, shall be
5 authorized to file a new service retirement application and an option
6 election form on behalf of her deceased husband with a joint allowance
7 full option, if, within one year from the effective date of this act,
8 she shall submit a request therefor to the state comptroller. In addition,
9 his date of retirement shall be deemed to have been August 15,
10 2016. Once such application is received, any rights or benefits to the
11 pre-retirement ordinary death benefit payable upon the death of a member
12 in service pursuant to section 448 of the retirement and social security
13 law shall be waived. Any amounts paid by the New York state and local
14 employees' retirement system as the result of the death of Robert C.
15 Ritchie prior to the filing of the request for a service retirement
16 benefit pursuant to this section shall be deducted from the service
17 retirement benefit payable thereafter.

18 § 2. Any additional costs for this act shall be paid by the state of
19 New York.

20 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD00695-04-6

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would allow Susan Gillinder, widow of deceased member Robert C. Ritchie, to file a new service retirement application with a joint allowance full option election on behalf of Robert C. Ritchie. The date of retirement would be August 15, 2016. Any ordinary death benefit paid prior to the filing of a new service retirement application will be deducted from the benefits payable under this legislation.

This bill will not increase the state of New York's annual contributions.

There will be an immediate past service cost of \$550,000 borne by the state of New York as a one-time payment. This cost assumes that payment will be made on March 1, 2027.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated February 5, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-91. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.